

INTERNSHIP ASSIGNMENT



Legal Research Paper

Title of the Assignment

“The Influence of International Maritime Law on India’s Coastal Security Policies”

- **Submitted by:** Alshan Husain Shah
- **Internship ID:** LCINT-2025-LX83YN
- **Law School/University:** K.G.K. (P.G.) College, Moradabad (U.P.), Affiliated To M.J.P. Rohilkhand University, Bareilly (U.P.)
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Abstract

In an age of growing maritime threats and geopolitical complications, the littoral states all around the globe are increasingly relying on international maritime laws as a guiding principle for their operation and defense. India, with its long coastline of over 7,500 kilometres, is confronted by a large number of security issues varying from piracy and trafficking to state-sponsored infiltration and terrorism by its neighbouring countries. This paper critically examines how international maritime law specifically conventions such as UNCLOS, the SUA Convention and SOLAS affects the India's coastal security policies. It follows the development of India's maritime legal awareness after the horrifying 26/11 Mumbai attacks and analyses how legal frameworks affect operational strategy, inter-agency coordination and legislative reforms. With growing tensions in the Indo-Pacific and growing strategic interest from external naval powers, India's maritime governance is poised at the intersection of international responsibility and national interest. Analytically and comparatively, it is submitted in this paper that the intersection of domestic security measures with international legal norms is not only desirable but also imperative for effective maritime sovereignty.

Introduction

Maritime security has become a corner-stone of national defense policy of sea-fronting countries worldwide. India, with a coast line of 7,516.6 km and 12 major ports, has a dependence on sea trade that brings to the forefront its strategic concerns of security and sovereignty of its sea frontiers. Beyond economic concerns, India's coastlines are vulnerable to a spectrum of threats unleashed by terrorism, illegal immigration, arms-smuggling, drugs, and environmental threats. The dastardly 26/11 Mumbai attacks, engineered through the sea route, served as a wake-up call for India's defense establishment and ushered in a paradigm shift in maritime policy and legislation. To that end, international maritime law presents a framework and an arsenal of tools by which states can build policies that balance security requirements with obligations under international convention. Treaties such as the United Nations Convention on the Law of the Sea (UNCLOS), the Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation (SUA Convention), and the International Convention for the Safety of Life at Sea (SOLAS) have created internationally consensual standards for territorial seas, high seas, maritime crime and state cooperation.

This paper examines the evolving function of international maritime law in shaping India's coastal security paradigm. It examines India's balancing of the twin imperative of national security and the rule-based international maritime order. In an examination of legislative responses, operational doctrine and institutional constructs, this research paper seeks to demonstrate the significance of crossing international legal borders with domestic policy to secure a secure and rule-based maritime environment.

India's Maritime Geography: Why India's Coastal Security is so Complex?

India's maritime geography is both a vast strategic opportunity and a complicated security challenge. With a huge coastline of more than 7,500 kilometres, bounded by the Arabian Sea on the west and the Bay of Bengal on the east, the nation is located at a vital crossroads of international sea lanes that handle almost 90% of international trade. Its position also situates it within close range of some of the world's most unstable maritime zones, such as the Persian Gulf, the Horn of Africa and the Strait of Malacca all being hotbeds of piracy, trafficking and geopolitical tensions. The fact that there are more than 1,300 islands, several minor and major ports and thousands of fishing boats makes coastal surveillance and enforcement difficult. Several coastal areas, especially in the states of Gujarat, West Bengal and Tamil Nadu are also socioeconomically weak and hence prone to illegal smuggling, human trafficking and radical penetration. All these are further aggravated by weak infrastructure in distant coastal areas, uncontrolled movement of small fishing craft and divided jurisdiction between maritime authorities. In this environment, the use of international maritime law transcends the issue of compliance and it becomes an instrument of survival and stability. Legal regimes provide India the foundation to exercise sovereignty, protect sea lanes and cooperate globally against threats that are pan-national. Concurrently, the variability of threats means India must tailor these laws to its distinct geography, community-driven security requirements and regional security context. This approach of segregating the international laws with the domestic laws will be definitely provide a helping hand to eliminate some of the major complexities which are associated with the India's maritime geography. It will not only enhance the India's coastal security but will also align India with various international frameworks to work in uniformity with other countries all around the world, giving out a clear and crisp message of unity and parity.

Key Maritime Conventions and Their Influence on India

India's perspective of international maritime law is largely shaped by treaties and conventions. These treaties and conventions setup pertinent legal parameters as well as mechanisms for cooperation with respect to ocean governance. While formulating coastal security policies for India, there are three treaties of particular importance. The first one is UNCLOS, followed by the SUA Convention of 1988 and SOLAS including amendments of 1974 and other subsequent amendments later on.

1. The UNCLOS Convention:

This treaty nowadays holds the status of a guiding light to the India maritime legal framework. By virtue of the fact that this convention was ratified in 1995, India accepted and recognized the legal definitions of territorial sea (12 nautical miles [nm]), contiguous zone (24 nm), and EEZ zone (200 nm). Thus, India has been in a position to exercise due jurisdiction allowing certain activities of national security and economic interest like oil exploration in the Arabian Sea or controlling illegal fishing in the Bay of Bengal. On the other hand within the ambit of India's security perspective, the more pertinent provisions would be hot pursuit and the right of innocent passage, each of which is integral to the security of India. Simply put, hot pursuit allows the Indian Coast Guard or Navy to pursue and apprehend foreign vessels that have breached laws within its EEZ, provided the pursuit was continuous and commenced in permissible zones.

2. The SUA Convention (1988):

The Convention on the Suppression of Unlawful Acts against the Safety of Maritime Navigation (SUA), in particular gained momentum in the aftermath of the terror attacks of 26/11 on Mumbai. This SUA protocol criminalizes a wide range of activities that threaten maritime security, such as hijacking, sabotage and attacks on ships, crews or offshore platforms. Recognizing the significance of this tool, India amended its domestic legislation to empower its enforcement agencies to curb maritime terrorist acts without reference to the SUA framework.

Key operational consequences of the SUA include extending the jurisdiction of Indian authorities to arrest or prosecute any person believed to have conspired or committed maritime crimes regardless of whether such conduct occurs in international waters that are allegedly harmful to India.

3. The SOLAS Convention:

Undoubtedly, SOLAS certainly is the best and most widely accepted treaty for the safety of merchant vessels. It has really had some quite strong implications for India especially in the scope of inspections of ships and also with regard to port security. Post 2004, when the ISPS Code was adopted as an amendment to SOLAS, Indian ports underwent a considerable transformation with respect to the introduction of a culture of security including vessel monitoring systems, identity verification, surveillance and stringent compliance protocols. By adopting SOLAS and its future amendments, India not only complies with international standards but also enhances the coordination capacity with foreign navies, coast guards and shipping agencies which is quite relevant given the high levels of international traffic through Indian Ocean trade routes.

Evolution of India's Coastal Security Post - 26/11

In the early hours of November 26, 2008, the attacks on Mumbai, popularly described as 26/11, changed forever the security environment within India. Ten armed terrorists landed in Indian territory through sea routes that somehow plummeted past various layers of coastal surveillance. This incident, which took the lives of more than 170 people and raised cries across the world, opened up the large chinks in the Armor of India's maritime security and thereby became the fulcrum around which the reworking of India's coastal security strategy came to be instituted. Prior to 26/11, India's coastal security was a largely piecemeal affair, run on the basis of overlapping jurisdictions amongst the Indian Navy, Indian Coast Guard, Marine Police, Customs and port authorities.

In response to the attack, the Indian government initiated a multi-tier response to address the situation. The National Committee for Strengthening Maritime and Coastal Security (NCSMCS) was put in place to better coordinate with various maritime stakeholders. The Coastal Security Scheme being revamped and reinforced has also now gained the resources to equip and train state marine police forces while the armed forces assigned to maritime security were given to the Indian Navy.

In yet another important institutional reform, the NC3I for National Command Control Communication and Intelligence Network was created that united coastal radar systems, automatic identification systems and maritime surveillance infrastructure into one grid.

Another institution created in 2014 was the Information Management and Analysis Centre (IMAC), a centralised platform for collection, analysis and dissemination of maritime intelligence. IMAC jointly works with the Information Fusion Centre - Indian Ocean Region (IFC-IOR) to enhance international cooperation with navies and maritime stakeholders. These developments herald the coming of a new approach to coastal security, moving from a reactive to a proactive and layered approach. The coastal-marine police complement and enhance by community engagement programs with increased reports in vulnerable fishing communities.

But the challenges are still there. This raises further threats to jurisdictional overlaps, logistical restrictions in the smaller coastal states and uneven capacity-building across regions. Hence while there is considerable achievement to boast of with respect to coastal defense in India, momentum will need to be sustained through continuous investments, periodic monitoring and above all, interfacing with international best practices and legal norms.

What are the Legal Challenges for India in Aligning Domestic Policy with International Law?

However, it is not smooth sailing for India- made coastal security policies in accordance with the international legal framework. Its adherence to international maritime laws has improved over time, but this process is by no means an easy one. Access to infrastructure, operations, legal flexibility, sovereignty position, federalism and allocation of budget are some of the issues at play.

1. Fragmented Jurisdiction and Overlapping Authority:

The most permanent problem of all in coastal security would probably be the confusion of central-state role demarcation. Overall, the Indian Navy takes care of maritime security, while the Coast Guard patrolled law enforcement operations in the territorial waters. The states provide a marine police service that patrolled the coastal area up to 12 nautical miles. All these multidimensional agencies often herald chaos and slow responses in emergencies, especially when legal jurisdiction is dubious or even contested. Even with its clear definitions of maritime zones in treaties such as UNCLOS, operationalizing those definitions into effective domestic jurisdiction is still proving to be a task. Central-state government coordination remains uneven across the states-most especially those with weak administrative capacity-in the context of sovereignty, federalism, legal flexibility and budget allocation.

2. Legislative Gaps and Outdated Laws:

Even after acceding to major international conventions, India continues to live with many colonial laws, such as the Indian Ports Act of 1908 or the Territorial Waters, Continental Shelf, Exclusive Economic Zone and Other Maritime Zones Act of 1976, and these do not have provisions for present-day threats like cyber piracy, maritime terrorism or unmanned underwater vehicles.

In addition, India is far from completing the domestication of all the provisions of conventions, such as SUA and SOLAS, into domestic-enforceable laws. This leaves loopholes in the law and does not allow the law-enforcement agencies to charge effective prosecution of maritime criminals, particularly those caught in the open international waters or EEZs.

3. The Compromise between National Sovereignty and International Norms:

Generally, India has been somewhat modest about responding to foreign military presence in its waters and global mandates that could infringe on its sovereignty. Thus, that type of joint naval exercise or coordinated patrol or even information-sharing scheme with international cooperative frameworks would be politically more sensitive, even when they enhance national security interests. For example, while India has adopted a range of maritime domain awareness (MDA) programs with countries like the United States, Japan or Australia, it is still rather selective about sharing information for the sake of strategic autonomy and intelligence confidentiality.

4. Resource Deficits and Capacity Fractions:

Deployment of comprehensive international obligations is expensive in all respects-financial, technical, and human resources. India has progressed in establishing the radar stations, AIS receivers, watchkeeping, and full coverage systems. Most coastal states still suffer from poorly funded marine police stations, inadequate infrastructure, and little training. This infrastructural inadequacy becomes a bottleneck for complete effective implementation of international protocol and, therefore, weakens India's ability to deal with transnational maritime threats in real-time scenarios.

India's Role in the Indo-Pacific: Legal Diplomacy and Strategic Alignment

India's maritime security agenda must be understood in relation to the changing dynamics of the Indo-Pacific, a geopolitical stage that now holds central significance in global commerce, naval dominance and international law. As tensions heighten in the South China Sea, piracy continues to be an issue in the Strait of Malacca and foreign naval presence grows in the Indian Ocean. India has emerged as a regional maritime stabilizer balancing sovereign interests with support for a rules-based international order.

1. Maritime Law as a Tool of Diplomacy:

India's maritime diplomacy has its foundation in the pursuit of the liberties under UNCLOS. By maintaining these legal standards, India stands with like-minded nations like the United States, Japan, Australia and France all of whom believe in a free, open, and inclusive Indo-Pacific.

Through forums such as the Quad and the Indian Ocean Rim Association (IORA), India has advocated regional maritime cooperation, mutual exercises, and harmonization of law on piracy, humanitarian response, and disaster relief. Such partnerships not only advance India's strategic leverage but also support its reputation as a responsible maritime actor.

2. Legal Standing in Maritime Disputes:

While India's maritime boundaries are mostly resolved especially since the 2014 arbitral award in the India-Bangladesh maritime dispute, its persistent call for dispute resolution under international law has gained it diplomatic capital. Unlike unilateral or militarized claims elsewhere, India's legal approach provides a normative example for the region.

This credibility enables India to talk from a position of principle in calling for legal conduct in disputed waters, e.g., in the South China Sea or near sensitive choke points like the Hormuz Strait. It gives greater power to India's voice in international maritime forums.

3. Strategic Use of Legal Infrastructure:

India's attempts to forge legal maritime partnerships are now supported by strategic pacts like White Shipping Agreements (non-military information sharing) with more than 20 nations and the creation of the Information Fusion Centre - Indian Ocean Region (IFC-IOR).

In addition, Indian naval diplomacy through exercises such as Milan or humanitarian visits to the Indian Ocean frequently includes legal messaging: a demonstration not only of ability to reply militarily, but to maintain international maritime norms.

4. Navigating Regional Complexities:

But India's sea-going activity in the Indo-Pacific is not without its own challenges. Its bilateral ties with Southeast Asian coastal states, several of whom are anxious about big regional powers, need sensitive legal and diplomatic calibration. Sometimes India needs to steer its advocacy of international legal traditions while being anxious to not be involved in larger power politics.

Conclusion

International maritime law is a ubiquitous influence in the Indian coastal security paradigm with an essential presence. The Indian Ocean is a region of the world of great geopolitical importance and economic significance and thus the security establishments in India cannot afford to ensure its operations in that theatre without a resemblance of international maritime norms and expectations. As this research paper has demonstrated conventions such as UNCLOS, SUA and SOLAS, which not only establish the organizational framework for legal maritime conduct but also serve as essential tools of cooperation, deterrence and strategic legitimacy. India's assertive course correction to the 26/11 vulnerabilities was a turning point in the country's coastal security approach. Subsequent institutional consolidation, modernization of surveillance, and integrated command system building are signs of an era of new maritime governance.

Still, despite all that appears visible, there are quite a few challenges left ahead of institution-building, there are old laws and jurisdictional ambiguity behind it, improper inter-agency coordination and thin technology reach in remote coastal zones. Harmonization of domestic law with international commitments is not so much a legal reform question but also a matter of political will and long-term investment. India needs to accord top priority to updating its maritime laws to address current security concerns, such as cyber-attacks on port facilities, autonomous underwater drones and increasingly converging environmental degradation with security concerns.

Another promising path is maritime diplomacy. As a responsible and democratic naval power, India can best lead by exemplifying international maritime law and regional stability in the Indo-Pacific. Adherence to law not only lends credibility to India but also provides India with bargaining power during negotiations, alliances and resolution of maritime conflicts. When autocratic actors are increasingly violating international maritime norms, India's rule-based reaction based on dialogue, transparency and cooperation can be the model for a more balanced and secure maritime future. Furthermore, Indian security and legal institutions have to look ahead to address long-term challenges of climate change, sea rise and changing maritime boundaries. The climatic shifts will redefine current-day EEZs, affect accessibilities around ports and redraw global trade routes all of which need forward-looking policy and legal thinking.

In essence, India's coastal security policy needs to be forward-looking and globally networked. The maritime custodianship of the future will be determined by nations that are capable of balancing equally the need to obey the law and strategic flexibility. Making investments in the building of the law, inter-agency coordination, global partnerships and coastal vulnerability reduction, India can reshape its sea policies from being mere reactive responses to threats into long-term, legal and forward-looking ones. With increasing confidence, India is forging ahead towards its Indo-Pacific maritime future. Aligning the national policy on coastal security with the international legal order is no longer an option but a strategic necessity. The path forward is to establish institutions, update the legislations, construct cooperation and enforce the rule of law in the seas.

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